

Calendar Line 1

Case Name: *ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC*
Case No.: 24CV448687

The basis of Defendant/Cross Complainant's motion for judgment on the pleadings is that Plaintiff/Cross Defendant, a corporation, is unrepresented in this litigation. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record."].) While it is true that Plaintiff/Cross Defendant cannot prosecute the action without legal counsel, this is not a basis upon which to grant judgment on the claims within the four corners of the pleadings or any facts subject to proper judicial notice.

Nevertheless, Defendant/Cross Complainant's concerns about Plaintiff/Cross Defendant's delinquency in retaining counsel is well taken. Therefore, the Court will set an Order to Show Cause on October 2, 2026, at 10:00 a.m. in Department 13 at which Plaintiff/Cross Defendant shall show cause why the complaint should not be dismissed for failure of Plaintiff/Cross Defendant to obtain counsel, and failure to prosecute, and show cause why Plaintiff/Cross Defendant's answer to the cross complaint should not be stricken for the same reasons.

The Court will prepare the final order.

- oo0oo -

Calendar Line 2

Case Name: *Maria Lopez vs. American Honda Motor Co., Inc.*

Case No.: 24CV450955

Defendant moves to compel the deposition of Plaintiff. It also seeks monetary sanctions against Plaintiff and/or Plaintiff's counsel in the amount of \$1,815.00 pursuant to the Code of Civil Procedure sections 2023.030 and 2025.450 subdivision (g)(1).

Motion to Compel Deposition of Plaintiff

Defendant, after receiving Plaintiff's objection to its deposition notice, emailed Plaintiff's counsel on February 13, 2026, requesting alternative dates. (Sadanaga Decl. ¶ 4.) When Plaintiff did not respond, Defendant emailed Plaintiff on March 16, 2026, requesting Plaintiff's availability, noting that it would involve the court if no response was made before March 24, 2026. (Sadanaga Decl. ¶ 4.) March 24 came and went. On April 1, 2026, Plaintiff's counsel emailed Defendant asking if the requested dates were provided, to which Defendant replied via email on April 3, 2026, that they had not, and again requested Plaintiff's availability. (Sadanaga Decl. ¶ 5.) Plaintiff failed to respond. On May 1, 2026, Defendant filed this motion. The Court is satisfied that Defendant attempted to resolve this discovery dispute prior to involving the Court and was left with no choice but to file the motion given Plaintiff's lack of engagement.

Misuses of the discovery process include "failing to respond or submit to an authorized method of discovery, making an evasive response to discovery, failing to confer or to attempt to confer...in a reasonable and good faith attempt to resolve informally any dispute concerning discovery." (Code Civ. Proc., § 2023.010.) Prior to Defendant's motion to compel, Defendant attempted several times to obtain alternative dates. (Sadanaga Decl. ¶ 6.) There was a lapse in Plaintiff's response from November 25, 2025, to April 1, 2026, and *again* from April 1, 2026, to June 1, 2026, after the motion had been filed. (Dias Decl. ¶ 2-5.) It was not until after Defendant filed this motion that Plaintiff ultimately responded. That response was to oppose the motion and finally to provide Defendant with acceptable dates - November 4, 6, and 9. (Dias Decl. ¶ 7.) This is a misuse of the discovery process.

Although Defendant has accepted the date of November 4, 2026, Plaintiff failed to confer properly to avoid the need for this motion. Therefore, the motion to compel the deposition of Plaintiff with document production within 10 days of the agreed upon date of November 4, 2026, is GRANTED.

Plaintiff shall appear for deposition and produce documents on or before November 14, 2026.

Monetary Sanctions

Code of Civil Procedure section 2023.030 states that the court may impose sanctions "against anyone engaging in conduct that is a misuse of the discovery process...unless it finds that the one subject to the sanction acted with substantial justification". (Code Civ. Proc., § 2023.030.) Plaintiff's opposition states that during the months of March and April 2026, internal staffing changes related to Plaintiff's handling attorneys transitioning out of the firm